

CCRB CASE CLOSING FORM

Assigned Investigator: Dinoso		Team: 7	CCRB#: 9703442	FADO: F
Date of incident: 8/10/97	Time of incident: 11:50 p.m.	Location of incident: § 87(2)(b) [REDACTED]	Pct. of occurrence: 43 rd Pct,	Date SOL expires: 2/11/99
Date reported: 9/23/97	Time reported: 10:00 p.m.	To whom/where/how reported: I.A.B. Action Desk		
Complainant: § 87(2)(b) [REDACTED]		Home address: § 87(2)(b) [REDACTED]		
Victims: Same as above § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]		§ 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]		
Witnesses: § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]		§ 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]		
Subject officer: PO Robert Lappin PO Craig Crisfield PO Kenneth Anderson Sergeant Denis O'Keeffe PO Antonio Guzman		Shield: 7079 15108 4669 2806 2693	Tax: 917852 918523 903342 894246 917094	Command: 43 rd Pct 43 rd Pct 43 rd Pct 43 rd Pct 43 rd Pct
Witness officers: PO Robert Scopino PO Kevin Roughneen PO Michael Ortiz PO Noel Mendez		25192 2942 23013 9360	918308 918255 917399 912008	43 rd Pct 43 rd Pct 43 rd Pct Manhattan North

PO Robert Gilmore	21079	880504	Narcotics
PO Jimmy Marquez	29274	915135	43 rd Pct
Allegations by letter:			Recommendations:
A. Force – PO Lappin beat Mr. § 87(2)(b) in violation of P.G. 104-01.			Unsubstantiated ✓
B. Force – PO Crisfield beat Mr. § 87(2)(b) in violation of P.G. 104-01.			Unsubstantiated ✓
C. Force – PO Anderson beat Mr. § 87(2)(b) in violation of P.G. 104-01.			Unsubstantiated ✓
D. Force – Sgt. O’Keeffe beat Mr. § 87(2)(b) in violation of P.G. 104-01.			Unsubstantiated
E. Force – PO Guzman beat Mr. § 87(2)(b) in violation of P.G. 104-01.			Unsubstantiated
F. Force – PO Anderson used pepper spray in violation of P.G. 104-01 and Interim Order 92 (94)			Exonerated
G. Force – PO Anderson pushed Ms. § 87(2)(b) in violation of P.G. 104-01.			Exonerated
H. Force – PO Guzman struck Ms. § 87(2)(b) with his nightstick in violation of P.G. 104-01.			Exonerated
I. Force – MOS used pepper spray in violation of P.G. 104-01 and Interim Order 92 (94)			MOS Unidentified

Summary of Complaint

Ms. § 87(2)(b)

Ms. § 87(2)(b) states that on August 10, 1997 at about 11:30 p.m., she and her husband, Mr. § 87(2)(b) were returning from a party to their home at § 87(2)(b). As they walked to their § 87(2)(b) apartment, the two became involved in an argument. Mr. § 87(2)(b) suggested that they continue their argument inside of the apartment so as not to alarm their neighbors. Mr. § 87(2)(b) entered the apartment and Ms. § 87(2)(b) attempted to follow, holding her infant child in her arms. As she entered the doorway, Mr. § 87(2)(b) slammed the door shut on Ms. § 87(2)(b) hand, causing her to drop the baby headfirst onto the floor. Ms. § 87(2)(b) went to a friend’s apartment on the § 87(2)(b) floor to call an ambulance.

Later, three officers, identified by Ms. § 87(2)(b) as PO Klifferton, PO Anderson and PO Guzman, placed Ms. § 87(2)(b) and her baby in the ambulance. Ms. § 87(2)(b) explained to the officers what had taken place with Mr. § 87(2)(b). She further stated that she did not want to press charges. However, the officers informed her that they were going to arrest Mr. § 87(2)(b) anyway. While in the ambulance with PO Klifferton, her sister in law § 87(2)(b), baby, her § 87(2)(b) old son and her § 87(2)(b)-old daughter, Mr. § 87(2)(b) entered the ambulance and grabbed the baby. PO Klifferton informed Mr. § 87(2)(b) that he was going to be placed under arrest. When Mr. § 87(2)(b) asked why, PO Klifferton immediately began to push Mr. § 87(2)(b) and screamed at him to

give up the baby. Mr. § 87(2)(b) asked if he could have a few minutes with the baby before leaving. PO Klifferton again pushed Mr. § 87(2)(b) causing him to fall onto Ms. § 87(2)(b) § 87(2)(b)-old daughter. Six other officers entered through the back of the ambulance and began pushing Mr. § 87(2)(b) Mr. § 87(2)(b) released the baby to § 87(2)(b).

Ms. § 87(2)(b) states that one of the officers handcuffed Mr. § 87(2)(b) who was then dragged out of the ambulance. Numerous officers, including PO Klifferton, PO Anderson and PO Guzman, began to beat Mr. § 87(2)(b) with their nightsticks about his entire body including his stomach and head. The officers dragged Mr. § 87(2)(b) to the sidewalk and began to kick and hit him. One officer then "maced" Mr. § 87(2)(b) with a "half-a-can of mace." The officers then sprayed Ms. § 87(2)(b) § 87(2)(b), § 87(2)(b), § 87(2)(b) and Ms. § 87(2)(b) § 87(2)(b)-old son. When Ms. § 87(2)(b) attempted find out why the officers were beating Mr. § 87(2)(b) PO Anderson slammed her against a car and handcuffed her. When Ms. § 87(2)(b) attempted to find out what was going on, PO Guzman approached her struck her in the face and stomach with his nightstick, threw her against a car and handcuffed her.

EMS took Ms. § 87(2)(b) to § 87(2)(b) where her eyes were washed with water. She was taken back to the precinct upon release and put through the system. She was arraigned and released the following day. In addition to her own injuries, Ms. § 87(2)(b) states that Mr. § 87(2)(b) suffered numerous contusions and was bleeding from his right ear. (Encl. 4B-D)

Extent and Results of Investigation

Civilian Interview Statements

Ms. § 87(2)(b)

Ms. § 87(2)(b) states that she and her husband, § 87(2)(b) were walking along § 87(2)(b) when they heard a commotion coming from across the street. There were about thirteen police cars present at the location. Ms. § 87(2)(b) then observed Mr. § 87(2)(b) being dragged and then thrown out of the ambulance while in handcuffs. Mr. § 87(2)(b) was yelling, "I can't see." Numerous officers began punching, kicking, "macing" and hitting Mr. § 87(2)(b) with their nightsticks. Mr. § 87(2)(b) was then placed in a patrol car. When § 87(2)(b) asked one of the officers why Mr. § 87(2)(b) had been beaten. This officer pushed Ms. § 87(2)(b) against a car and arrested her. Ms. § 87(2)(b) also states that Mr. § 87(2)(b) mother had claimed that she had been "maced" although Ms. § 87(2)(b) did not actually witness the "macing".

Ms. § 87(2)(b) states that she and her husband did not know the complainant or her family until the night of the incident. (Encl. 6A-B)

Mr. § 87(2)(b)

Mr. § 87(2)(b) also states that he observed Mr. § 87(2)(b) being thrown from the ambulance while in handcuffs. Numerous officers subsequently beat Mr. § 87(2)(b) with their nightsticks as the officers dragged him to a police car. Mr. § 87(2)(b) also observed numerous officers pushing various female members of Mr. § 87(2)(b) family. Mr. § 87(2)(b) states that he and his wife stood together for the duration of the incident and observed the entire incident from about twenty-five feet away. (Encl. 7C-D)

Mr. § 87(2)(b)

Mr. § 87(2)(b) states that following the verbal altercation with Ms. § 87(2)(b) the door accidentally slammed shut, causing her to drop their infant child. When Mr. § 87(2)(b) reopened the door, Ms. § 87(2)(b) had left the area. Mr. § 87(2)(b) left the apartment and went outside to look for the child. He then went to see his mother, Ms. § 87(2)(b). Ms. § 87(2)(b) and Mr. § 87(2)(b) sister, § 87(2)(b), accompanied Mr. § 87(2)(b) to § 87(2)(b) to look for Ms. § 87(2)(b) and the infant. Mr. § 87(2)(b) then returned to apartment building. Upon his return, he observed an ambulance outside. Ms. § 87(2)(b) was inside of the ambulance with the baby along with his other sister, § 87(2)(b). An EMT was also inside with an officer while another officer was standing outside of the ambulance. Mr. § 87(2)(b) entered the ambulance and grabbed the baby. The officer inside of the ambulance told him that he was going to be arrested and began to push him. Three to four officers then opened the back door of the ambulance, pulled his right arm behind his back and maced him. Mr. § 87(2)(b) passed the baby to his sister. The officers then handcuffed Mr. § 87(2)(b) and began beating him inside of the ambulance. This beating included the use of nightsticks. Mr. § 87(2)(b) was then taken out of the ambulance, thrown on top of a car and then onto the ground. Mr. § 87(2)(b) states that he could not observe which officers were involved once he had been maced. He was then taken to the 43rd Precinct and put through the system. Upon his release from Central Booking the following day, Mr. § 87(2)(b) sought medical attention at § 87(2)(b) where was diagnosed with a cut behind his right ear and internal injuries. (Encl. 8A-C)

Ms. § 87(2)(b)

Ms. § 87(2)(b), sister of Mr. § 87(2)(b) states that she went to § 87(2)(b) after Mr. § 87(2)(b) had informed her that the door to his apartment had accidentally slammed shut on Ms. § 87(2)(b) causing her to drop their infant child to the ground. Ms. § 87(2)(b) went to § 87(2)(b) and stood outside. Ms. § 87(2)(b) exited from the building holding the baby and entered an ambulance along with an officer. Ms. § 87(2)(b) also entered. Mr. § 87(2)(b) reappeared and took the baby from Ms. § 87(2)(b). The officer informed Mr. § 87(2)(b) that he was going to be arrested. Mr. § 87(2)(b) asked if he could have a few minutes to say goodbye to his baby. The officer denied the request and began to push Mr. § 87(2)(b). Mr. § 87(2)(b) handed the baby to Ms. § 87(2)(b). Four officers then opened the back door of the ambulance, handcuffed Mr. § 87(2)(b) and began hitting him and striking him with their nightsticks. An officer "maced" Mr. § 87(2)(b). Ms. § 87(2)(b) sister, § 87(2)(b), approached the back of the ambulance to find out what was happening to her brother. An officer then grabbed, Ms. § 87(2)(b) threw her against a car, handcuffed her and placed her in a police car. The first officer inside of the ambulance then threw Mr. § 87(2)(b) out of the ambulance and dragged him to a police car. Ms. § 87(2)(b) grabbed an officer and asked him what was happening to her brother. It appeared as if the officer was going to hit her with his nightstick, but Ms. § 87(2)(b) mother stood between the two. Ms. § 87(2)(b) then approached this same officer. The officer then struck Ms. § 87(2)(b) on the left side of the face with his nightstick, causing her to fall backwards and faint. Ms. § 87(2)(b) was then handcuffed and placed in the ambulance. (Encl. 11A-B)

Ms. § 87(2)(b)

Ms. § 87(2)(b) another sister of Mr. § 87(2)(b) states that she accompanied Mr. § 87(2)(b) to § 87(2)(b) and then § 87(2)(b) Ms. § 87(2)(b) was inside of the ambulance with two officers and the baby. Mr. § 87(2)(b) entered the side door and took the baby. The officers began screaming and pushed Mr. § 87(2)(b) telling him that he was going to be arrested. The baby was handed to Ms. § 87(2)(b) Two more officers entered through the back door and began hitting Mr. § 87(2)(b) with their nightsticks along with the other two officers already present in the ambulance. One of the officers "maced" Mr. § 87(2)(b) and then "maced" him again once he had been handcuffed. One of the two original officers then dragged Mr. § 87(2)(b) out of the side door and onto the ground. The officers continued to strike Mr. § 87(2)(b) with their nightsticks. Ms. § 87(2)(b) approached the officers to ask why they were beating her brother. An officer grabbed Ms. § 87(2)(b) threw her against a car, handcuffed her and placed her in a patrol car. Ms. § 87(2)(b) states that she also observed an officer strike Ms. § 87(2)(b) with his nightstick in the upper abdominal area. (Encl. 13A-B)

Ms. § 87(2)(b)

Ms. § 87(2)(b) mother of Mr. § 87(2)(b) states that she was standing in front of § 87(2)(b) with her son, Mr. § 87(2)(b) and one of her daughters. Ms. § 87(2)(b) states that Mr. § 87(2)(b) and Ms. § 87(2)(b) apparently had some sort of argument and that Mr. § 87(2)(b) was now looking for her. Ms. § 87(2)(b) and Mr. § 87(2)(b) entered the building and encountered an officer. Ms. § 87(2)(b) states that Mr. § 87(2)(b) was holding his baby and the officer began to "harass" and push her son around. One of Ms. § 87(2)(b) daughters took the baby while the officer continued to push Mr. § 87(2)(b) Ms. § 87(2)(b) then went to Ms. § 87(2)(b) apartment, did not find her there and returned outside. She observed numerous officers at the back of an ambulance attempting to handcuff her son. One of the officers sprayed Mr. § 87(2)(b) A "drop" of the spray got into Ms. § 87(2)(b) eye. She also states that some of the officers were hitting her son although could not specify how or where Mr. § 87(2)(b) was being struck. One of the officers then threw Mr. § 87(2)(b) against the ambulance and began dragging Mr. § 87(2)(b) The officers then began striking Mr. § 87(2)(b) with nightsticks. Ms. § 87(2)(b) observed one of the officers arrest one of her daughters and observed PO Guzman punch Ms. § 87(2)(b) in the stomach. (Encl. 15A-C)

Mr. § 87(2)(b)

Mr. § 87(2)(b) was driving along § 87(2)(b) when a parked ambulance blocked his path. Mr. § 87(2)(b) observed two women, a male holding a baby, and a small girl inside of the ambulance along with a police officer and an EMT. A second officer was standing outside of the ambulance. About ten minutes later, additional officers entered the ambulance through the back and side doors, each officer carrying a nightstick. The ambulance began to shake and Mr. § 87(2)(b) could here screaming from inside of the ambulance. Moments later, the officers pulled Mr. § 87(2)(b) out of the ambulance. Mr. § 87(2)(b) fell onto a parked car and then onto the ground. The officers then dragged Mr. § 87(2)(b) about fifteen feet and placed him in a patrol car. A woman approached the officers and asked what the officers were doing to her brother. An officer grabbed her, slammed her onto a police car, handcuffed her and placed her in a patrol car. A

second woman also approached an officer. This officer pushed her away with his nightstick and then struck her once in the chest area. The woman fell to the ground and was handcuffed. She was placed in the ambulance and taken from the scene. Mr. § 87(2)(b) offered to help the male's mother and drove her to the precinct. Mr. § 87(2)(b) states that he never met the § 87(2)(b) family or Ms. § 87(2)(b) prior to the night of the incident. (Encl. 17C-E)

EMT, Mr. § 87(2)(b)

Mr. § 87(2)(b) states that he and his partner, § 87(2)(b) responded to a call at § 87(2)(b). Upon entering the location, Mr. § 87(2)(b) observed a female with a bruised eye. He also observed a baby that had apparently been injured. Two officers were also present. The EMT's removed the woman and her baby to the ambulance downstairs. Suddenly, a male rushed into the ambulance and grabbed the baby. One of the officers instructed the male to give up the baby because was going to be placed under arrest. The male refused and became belligerent. Two additional officers arrived at the location and attempted to aid the first two officers in handcuffing the male. The male continued to resist. Mr. § 87(2)(b) lost sight of the baby. Two females intervened with the arrest and were themselves arrested. Finally, one of the officers discharged his pepper spray. The officers were then able to handcuff the male and place him in a car. Mr. § 87(2)(b) states that the pepper spray effected the male, the baby's mother and one of the officers. Mr. § 87(2)(b) did not see any of the officers use their nightsticks or strike the male. (Encl. 18A-C)

EMT, § 87(2)(b)

Mr. § 87(2)(b) states that he observed the male rush the ambulance but was unable to see what transpired. He was aware that pepper spray had been utilized because his partner exited complaining of irritation to his eyes. Some time later, the male was removed in handcuffs and placed in a patrol car. He did not witness any of the officers using their nightsticks or striking the male. (Encl. 19A-B)

Member of Service Statements

Police Officer Kenneth Anderson

PO Anderson responded to a call for back up at § 87(2)(b) with Sgt. O'Keeffe. After initially speaking with the responding officers, PO Anderson and Sgt. O'Keeffe left the scene only to be called back a few minutes later. Upon returning to the location, PO Anderson observed two women on top of the officers inside of an ambulance. PO Anderson ordered the two women out of the ambulance. He then observed a male holding a small baby. Another female was pulling the baby by its head. As the officers ordered the male to release the baby, a woman jumped on PO Anderson's back. PO Anderson exited the ambulance and ordered the woman to get back. When the woman failed to comply, PO Anderson handcuffed her and placed her in an RMP. Back inside of the ambulance, the male continued to fight with Sgt. O'Keeffe, pulling down equipment from the sides of the ambulance. PO Anderson pepper sprayed the male, immediately immobilizing him. The officers then handcuffed the male and carried him

into an RMP because he refused to move on his own. (Encl. 20D-E)

Police Officer Robert Scopino

PO Scopino stated upon interview that he had no recollection of having responded to the incident in question. PO Scopino was assigned to a footpost. However, there is no specific indication in his memo book or in the communications records that PO Scopino responded to the incident. (Encl. 21C)

Police Officer Kevin Roughneen

PO Roughneen states that he was assigned the arrest of Ms. § 87(2)(b) and was not actually present at the location. He did not observe any physical injuries to Ms. § 87(2)(b) (Encl. 22D)

Police Officer Michael Ortiz

PO Ortiz states that he responded to the location with PO Guzman and observed a crowd of about fifty people near an ambulance. He was attempting to maintain crowd control and did not witness any of the arrests that were made at the location. (Encl. 23D)

Police Officer Robert Lappin

PO Lappin and his partner, PO Crisfield, were assigned to a footpost when they received a call of a dispute involving an injured baby. When they responded to the location, Ms. § 87(2)(b) stated that Mr. § 87(2)(b) had been drunk and had punched her in the face. In the process, their infant child had been knocked to the ground. The two officers took Ms. § 87(2)(b) and her baby into an ambulance downstairs. Mr. § 87(2)(b) suddenly appeared, rushed into the ambulance and grabbed the baby. Mr. § 87(2)(b) refused to relinquish the baby and became visibly agitated. The officers radioed for back up. Mr. § 87(2)(b) finally released the baby PO Crisfield managed to place one cuff on Mr. § 87(2)(b). Mr. § 87(2)(b) however, began to physically resist, kicking and punching at the officers. A back up unit, including PO Anderson, arrived at the location and attempted to aid the officers. One of the officers then pepper sprayed Mr. § 87(2)(b). In the process, PO Lappin was inadvertently sprayed. Mr. § 87(2)(b) was handcuffed and carried into an RMP. Other than the effects of the pepper spray, Mr. § 87(2)(b) exhibited no signs of physical injury. (Encl. 24E-G)

Police Officer Craig Crisfield

PO Crisfield states that he and PO Lappin first encountered Mr. § 87(2)(b) as they attempted to locate Ms. § 87(2)(b). Mr. § 87(2)(b) was apparently intoxicated and verbally abusive. After Ms. § 87(2)(b) and her child had been removed to the ambulance downstairs, Mr. § 87(2)(b) entered and grabbed the baby away from Ms. § 87(2)(b). A backup unit was called to the location and Mr. § 87(2)(b) was informed that he was under arrest. PO Crisfield had been able to place one cuff on Mr. § 87(2)(b) when he began to resist. As the officers struggled with Mr. § 87(2)(b) one of the officers discharged his pepper spray. Mr. § 87(2)(b) continued to resist momentarily but was finally handcuffed. Mr. § 87(2)(b) was carried out the ambulance and placed in an RMP. Mr. § 87(2)(b)

showed no sign of injury. PO Crisfield was the arresting officer of record for Mr. § 87(2)(b) arrest. (Encl. 25E-F)

Police Officer Antonio Guzman

PO Guzman states that when he arrived at the location, PO Lappin, PO Crisfield and other officers were attempting to arrest Mr. § 87(2)(b) who was holding a baby at the time. When Mr. § 87(2)(b) did release the bay he began to fight with the officers. When the officers did manage to handcuff Mr. § 87(2)(b) they carried him out of the ambulance. Ms. § 87(2)(b) rushed towards Mr. § 87(2)(b) PO Guzman warned Ms. § 87(2)(b) to move back. A large crowd had gathered at this point. Ms. § 87(2)(b) failed to comply and attempted to push past PO Guzman. With his nightstick braced against his forearm pushed Ms. § 87(2)(b) back causing her to fall to the ground. PO Guzman accompanied Ms. § 87(2)(b) to § 87(2)(b) and then back to the station house. (Encl. 26F-G)

Police Officer Noel Mendez

PO Mendez had no recollection of having responded to the location. The Sprint printout indicates that PO Mendez' sector, sector H, may have responded to the location. (Encl. 27)

Police Officer Robert Gilmore

PO Gilmore stated that by the time he and his partner responded to the location, the situation was apparently under control. He did witness any of the arrests. (Encl. 28D)

Sergeant Denis O'Keefe

Sgt. O'Keefe states that he responded to a call for back up from § 87(2)(b). After the initial response, he left the location only to be called back to the location. Upon his return, Sgt. O'Keefe observed Mr. § 87(2)(b) inside of the ambulance holding a baby. Sgt. O'Keefe states that Mr. § 87(2)(b) eventually released the baby. He then attempted to handcuff Mr. § 87(2)(b). Mr. § 87(2)(b) however, began to resist arrest. As Sgt. O'Keefe struggled with Mr. § 87(2)(b) his partner, PO Anderson, momentarily disappeared. When he returned, PO Anderson pepper sprayed Mr. § 87(2)(b). Some of the spray hit Sgt. O'Keefe. Mr. § 87(2)(b) continued to struggle before he was finally handcuffed. Mr. § 87(2)(b) refused to exit the ambulance to under his own power and had to be carried to an RMP. (Encl. 29E)

Police Officer Jimmy Marquez

PO Marquez states that he has no recollection of having responded to this incident. The Sprint printout indicates that PO Marquez' sector, sector H, may have responded to the location. (Encl. 30D)

Communications Records

Three 911 calls were made as a result of the incident. The first call was placed at 11:46 p.m. from an anonymous male caller. The caller reported that a woman was screaming for help and sounded as if her husband was beating her. The second call was placed at 11:47 p.m. from an anonymous female caller. She stated that woman had dropped her baby on its head during an argument with her husband. The 911 operator stated that the police and an ambulance would be sent. The third call was placed by an anonymous male at 12:42 a.m.. The caller stated the police were not able to control the situation due to a large crowd. (Encl. 33A-E)

Photo Arrays

Ms. § 87(2)(b)

Ms. § 87(2)(b) identified PO Crisfield as having been inside the ambulance and as one of the officers who beat Mr. § 87(2)(b). She also identified PO Guzman as the officer who struck her with a nightstick and then arrested her. (Encl. 5A-L)

Mr. § 87(2)(b)

Mr. § 87(2)(b) identified PO Crisfield as one of the officers who arrived at the scene later in the incident. He also identified PO Anderson and PO Guzman as having been present at the scene. (Encl. 10A-L)

Ms. § 87(2)(b)

Ms. § 87(2)(b) identified PO Crisfield as having argued with Mr. § 87(2)(b) inside of the ambulance and PO Guzman as having pushed Ms. § 87(2)(b) (Encl. 12A-L)

Ms. § 87(2)(b)

Ms. § 87(2)(b) identified PO Crisfield as having been in the ambulance and PO Guzman as having arrested Ms. § 87(2)(b) (Encl. 14A-L)

Ms. § 87(2)(b)

Ms. § 87(2)(b) identified PO Crisfield as having been present and PO Guzman as the officer who struck Ms. § 87(2)(b) (Encl. 16A-L)

Mr. § 87(2)(b)

Ms. § 87(2)(b) identified PO Anderson as the officer whom Mr. § 87(2)(b) sister pulled out of the ambulance and PO Guzman as the officer who arrested another the baby's mother. (Encl. 18F-Q)

Mr. § 87(2)(b)

Mr. § 87(2)(b) recognized PO Mendez and Sgt. O'Keeffe as having been present at the scene. (Encl. 19-E-P)

PO Lappin was not portrayed in the photo arrays.

Police and Arrest Records

Mr. § 87(2)(b) was charged one count each of § 87(2)(a) 160.50 (Encl. 38) The charges against him were dismissed § 87(2)(b). (Encl. 39) Ms. § 87(2)(b) was charged § 87(2)(b) Ms. § 87(2)(b) was issued a summons § 87(2)(b)

The 43rd Precinct Command Log indicates that EMS was called to the precinct to treat Mr. § 87(2)(b) for the effects of mace. (Encl. 41) A Medical Treatment of Prisoner form shows that Mr. § 87(2)(b) refused medical attention. (Encl. 40) The log also shows that Ms. § 87(2)(b) was taken to § 87(2)(b) for treatment due to the effects of mace. Ms. § 87(2)(b)'s physical condition is listed as apparently normal. (Encl. 41)

Medical Records

§ 87(2)(a) PBH § 18(6)

Photographic Evidence

Upon interview on January 13, 1998, Mr. § 87(2)(b) presented 9 Polaroid photographs documenting his injuries. Computer scanned enlarged copies were made. Photograph # 1 shows the back of the Mr. § 87(2)(b) head and depicts a small cut to the back of his left ear. The top of the photograph is dated "7/11/97." Photograph # 2 depicts a bruise to Mr. § 87(2)(b) ribs. Photograph # 3 depicts "handcuff bruises". The caption at the bottom of the photograph indicates that the picture was taken at 12:30 a.m. on July 11, 1997. Photograph # 4 also depicts bruises to the wrists. Photograph # 5 depicts a bruise to the left shoulder and left upper arm. This photo is also dated 7/11/97. Photograph # 6 depicts a bruise to the right biceps. This photo is dated 7/11/97. Photograph # 7 depicts an abrasion to the right elbow. This photo is also dated 7/11/97. Photograph # 8 shows a bruise to the left upper arm. Photograph # 9 shows the back of Mr. § 87(2)(b) left shoulder. (Encl. 9A-L)

Mug shots of Ms. § 87(2)(b) and Mr. § 87(2)(b) show no evidence of physical injury. (Encl. 46-47)

Recommendations and Conclusion

Allegations A – E . Force – PO's Lappin, Crisfield, Anderson, Guzman and Sgt. O'Keeffe beat Mr. § 87(2)(b)

Mr. § 87(2)(b) claims that once he had been handcuffed, he was severely beaten by numerous officers. Accounts of the alleged beating vary widely from witness to witness. Some of the civilian witnesses state that Mr. § 87(2)(b) was struck with nightsticks inside of the ambulance while others claim that it was only outside of the ambulance. Still others, Mr. § 87(2)(b) for example, did not witness any officers striking Mr. § 87(2)(b) with nightsticks. Ms. § 87(2)(b) claims that the beating lasted for over half an hour while Mr. § 87(2)(b) states that it lasted for only ten seconds. Ms. § 87(2)(b) states that approximately twelve officers beat Mr. § 87(2)(b) while Mr. § 87(2)(b) for example states that only three officers were hitting Mr. § 87(2)(b). Adding further confusion to the account of the alleged beating, only two specific officers, PO Crisfield and PO Guzman, were positively identified as having participated. However, none of the witnesses could match these officers to any specific action. That is, Ms. § 87(2)(b) who identified these two officers as having participated in the beating, cannot describe what these two officers might have done. § 87(2)(g)

Other witnesses, Mr. § 87(2)(b) and Mr. § 87(2)(b) included, each state that they did not observe Mr. § 87(2)(b) being beaten by nightsticks outside of the ambulance. § 87(2)(g)

Mr. § 87(2)(b) refused medical attention on the night of the incident. § 87(2)(g)

It is therefore recommended that Allegation A through E be unsubstantiated.

Allegation F. Force – PO Anderson pepper sprayed Mr. § 87(2)(b)

Even Mr. § 87(2)(b) states that he would not release the baby once the officers informed him that he was going to be placed under arrest. § 87(2)(g)

The apprehending officers, as well as EMT § 87(2)(b), state that Mr. § 87(2)(b) immediately and violently

resisted arrest. § 87(2)(g)

It is recommended that PO Anderson be exonerated of Allegation F.

Allegation G. Force – PO Anderson pushed Ms. § 87(2)(b)

According to PO Anderson as well as other officers, as Mr. § 87(2)(b) was being arrested Ms. § 87(2)(b) attempted to physically intervene by grabbing PO Anderson. PO Anderson proceeded to arrest her. Civilian witnesses claim that Ms. § 87(2)(b) was merely asking the officers when PO Anderson “slammed” her onto a car and handcuffed her. § 87(2)(g)

Numerous witnesses stated that a large crowd had gathered at the location. A 911 caller even stated that the police were unable to control the situation. § 87(2)(g)

It is recommended that PO Anderson be exonerated of Allegation G.

Allegation H. Force – PO Guzman struck Ms. § 87(2)(b) with his nightstick.

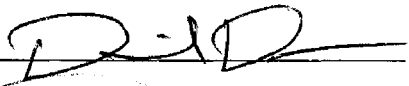
§ 87(2)(g) PO Guzman admits that he pushed Ms. § 87(2)(b) back with his nightstick braced against his forearm. Other witnesses also state that PO Guzman held his nightstick in this manner. § 87(2)(g)

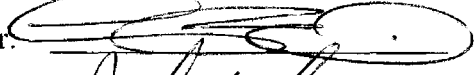
Some claim that Ms. § 87(2)(b) was struck in the face while others state that she was struck in the stomach. § 87(2)(g)

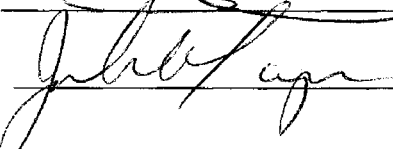
It is recommended that PO Guzman be exonerated of Allegation H.

Allegation I. Force – MOS used pepper spray.

In addition to PO Anderson’s use of pepper spray against Mr. § 87(2)(b) various witnesses claim that another officer used pepper spray against various on-lookers. However, there is no physical description of this officer given nor was he identified in photo arrays. It is therefore recommended that Allegation I be closed “MOS Unidentified.”

Investigator: 

Supervisor: 

Reviewed by: 

Reviewed by: _____

Date: 8/31/98

Date: 9/3/98

Date: 8/31/98

Date: _____